

PERSONNEL

56 Attachment 3

City of Waterville

Appendix C

Family and Medical Leave Act Policy Statement

The employees of the City of Waterville are covered under the Family and Medical Leave Act of 1993. The Family and Medical Leave Act (FLMA) requires covered employers to provide up to 12 weeks of unpaid, job-protected leave to “eligible” employees for certain family and medical reasons. City employees are eligible for this unpaid leave when they have worked 1,250 hours during the 12 months prior to the start of the leave. The 12 months of employment are not required to be consecutive in order for the employee to qualify for FMLA leave.

Leave will be granted for any of the following reasons:

- To care for the employee’s child after birth, or placement for adoption or foster care;
- To care for the employee’s spouse, son or daughter, or parent, who has a serious health condition; or
- For a serious health condition that makes the employee unable to perform the employee’s job.

To determine and/or verify qualifying reasons, the City may require eligible employees to provide medical statements certifying the reason for the leave.

Employees shall use paid accrued sick leave when family and medical leave is for the serious health condition of the family member or employee. Prior to receiving unpaid Family Medical Leave for health-related conditions, all accumulated sick, vacation, compensatory or convenience leave time must be exhausted. Sick leave cannot be used for non-health-related conditions of the employee or family member. The twelve-week maximum includes both paid and unpaid leave during the benefit period.

For non-health-related matters, the employee shall use accrued vacation, compensatory or convenience leave time for family and medical leave purposes. Prior to receiving unpaid Family Medical Leave for non-health-related conditions, all accumulated vacation, compensatory or convenience leave time must be exhausted. Non-health-related leave applies to the care of the employee’s child after birth, or placement for adoption or foster care.

The portion of the employee’s health and dental insurances that is paid by the City will continue to be paid during the paid or unpaid family medical leave. When on unpaid leave, the employee is responsible for making arrangements to pay his/her portion of the premium cost.

The method the City uses to calculate the twelve-month benefit period is the “rolling” twelve-month period measured backward from the date an employee first uses any family medical leave.

Questions regarding your rights under the Family and Medical Leave Act should be addressed to the Human Resources Officer.

WATERVILLE CODE

Employees who have a dispute or grievance under the Family and Medical Leave Act Policy may contact the U.S. Department of Labor, Wage and Hour Division, Portland, ME; (207) 780-3344.

Military Caregiver Leave: See § 56-6.9C.